

		jury required by the Constitution or a statute of this state or of the United States." (<i>Code Civ. Proc.</i>, § 1048(b).) The Court has considered the arguments and evidence submitted by both parties and determines, at this time, bifurcation as requested by Reitzfeld is not warranted. Accordingly, the motion is DENIED, without prejudice. <i>Counsel for Plaintiffs shall give notice of this ruling.</i>
5.	LVNV Funding LLC v. Gomez 21-1219223	The motion to enforce settlement filed by plaintiff LVNV Funding LLC (Plaintiff) is CONTINUED TO OCTOBER 1, 2026, AT 1:30 P.M. IN DEPARTMENT C20. There is no proof of service filed showing defendant Jasmine Gomez (Defendant) was served with this motion. The motion is therefore CONTINUED as stated above. Plaintiff is ordered to file a proof of service showing Defendant was properly and timely served with the motion. Said proof of service shall be filed at least 10 court days prior to the hearing. <i>Counsel for Plaintiff shall give notice.</i>
6.	Tykonina v. In-N-Out Burgers, Inc. 25-1470899	Before the Court is a motion by In-N-Out Burgers, Inc. (Defendant) for an order quashing Plaintiff's PMK deposition notices for Mark Courtney and John Mark Jennings. For the reasons set forth herein, the motion is DENIED. Attached as Exhibit A to the Declaration of Jessica Marsella is a "Notice of Videotaped Deposition Of Person(S) Most Qualified At In-N-Out Burgers, Inc., And Request For Production Of Documents At Deposition." This deposition notice was served on 3/4/26. Neither Mark Courtney nor John Mark Jennings are mentioned in the deposition notice. The Court notes that it may be that Defendant intended to file a different motion or submit different exhibits because in parts of the motion there is reference to deposition notices for Courtney and Jennings being served on 4/21/26. (See page 4, lines 22-26) However, those deposition notices are not part of the court's file. Accordingly, the Defendant's request "for an order quashing Plaintiff's PMK deposition notices for Mark Courtney and John Mark Jennings" is DENIED. Defendant also requests a protective order be entered "because the categories [in the deposition notices] are not tailored to either witness." (Motion at 10:1) However, because the deposition notices are not part of the record, the request for a protective order is DENIED.

		Defendant also requests appointment of a referee to supervise the deposition process. While there has been a lot of letter writing between counsel, there is insufficient evidence to warrant a referee. The court does not find "exceptional circumstances" exist based on the record submitted. (<i>Rule 3.920(c)</i>.) Accordingly, the request for a referee is DENIED. The requests by both parties for sanctions are DENIED. The court finds that under the circumstances, imposition of sanctions would be unjust. (<i>Code of Civil Procedure §2025.420(h)</i>.) <i>Counsel for plaintiff is ordered to give notice.</i>
7.	Kumar v. Children's Hospital of Orange County 23-1361438	Before the Court at present is the Motion to Set Preferential Trial Date, filed on 6/3/26 by Plaintiff Arjun Kumar, a minor, by and through his Guardian Ad Litem, Pavan Kumar ("Plaintiff"). The Motion demonstrates grounds for trial priority under <i>C.C.P. § 36(b)</i> and asks here to confirm priority for the existing 4/19/27 trial date. That date comports with the requirements of <i>C.C.P. § 36(g)</i>. The Court therefore GRANTS the Motion, to provide priority in accordance with <i>C.C.P. § 36(b)</i> and (<i>g</i>) for the 4/19/27 trial date. <i>Counsel for Plaintiff is to give notice.</i>
8.	Medina v. Unilogic Healthcare Management LLC 26-1554435	Before the Court is a motion to compel arbitration and stay proceedings filed by defendant Unilogic Healthcare Management LLC (Defendant) against plaintiff Leslie Medina (Plaintiff). For the reasons set forth below, the motion is GRANTED, subject to severance of the cost-splitting provision. On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the court must grant the petition to compel arbitration unless it finds: no written agreement to arbitrate exists; the right to compel arbitration has been waived; grounds exist for rescission of the agreement; or litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues. (<i>Code of Civ. Proc. § 1281.2</i>.) Here, Defendant met its burden to show a written arbitration agreement exists between the parties. (<i>Rosenthal v. Great Western Fin. Securities Corp.</i> (1996) 14 Cal.4th 394, 413 [burden]; Declaration of Maggie Nava ("Nava Decl.") ¶¶ 3, 4, Ex. B.) The burden shifted to Plaintiff to demonstrate the agreement is unenforceable. (<i>Little v. Pullman</i> (2013) 219 Cal.App.4th 558, 565.) Plaintiff argues the arbitration agreement is unconscionable. Where the court determines, as a matter of law, that a contract or any provision in the contract is unconscionable at the time it was made, the court may refuse to enforce the contract or clause or may limit the application of the clause to avoid an unconscionable result. (<i>Civ. Code § 1670.5</i>.) The doctrine has "both a procedural and a substantive element, the former focusing on oppression or surprise due to unequal